

1.5.1.

The lodestar fee presented by plaintiff is \$252,965. The total number of hours is 341.9, with hourly rates ranging from \$475 to \$1,025. This results in an imputed multiplier of 0.59, i.e., a “negative” multiplier. While the billing of a \$1,025 rate might be questioned, counsel have in essence discounted their lodestar by 41%, which is sufficient. The attorney’s fee of \$150,000 is reasonable and is approved.

Litigation costs of \$12,522.87 are reasonable and are approved.

Settlement administration costs of \$47,550.85 are reasonable and are approved.

The requested representative payment of \$2,500 for plaintiff will be reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests to her work on the case, and that since the data incident she has experienced identity theft and suspicious phishing emails. She has spent several hours working on the case. The \$2,500 payment is approved.

The motion for approval of attorney’s fees, costs, administrative costs, and representative payment is granted.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion for approval, as well as the motion for approval of fees and costs. Counsel are directed to prepare an order reflecting this ruling as well as the other items in the proposed order, and a final judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. That hearing date should be determined in consultation with the Department 39 clerk, but will be held in Department 16. Department 16, the Honorable Benjamin Reyes is assigned to this matter for all purposes as of March 1, 2026. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. If any funds are to be provided to the cy pres recipient, that shall be documented in the compliance declaration, and the judgment shall be amended to reflect the authorized payment. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C23-01684
CASE NAME: STAR JOSHUA VS. THE COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:
See line 4.

6. 9:00 AM CASE NUMBER: C23-02285
CASE NAME: FREDRICK HAGEN VS. TOWN OF DANVILLE
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES TO SPECIAL INTERROGATORIES, SET 1**
FILED BY: CENTRAL CONTRA COSTA SANITARY DISTRICT
TENTATIVE RULING:
Defendant Central Contra Costa Sanitary District (District) moves to compel further responses to

Special Interrogatories, Set Number 1 and Requests for Production of Documents, Set Number 2.

Requests at Issue:

The district's moving papers seek further responses to 8 different requests for production of documents and 25 special interrogatories. In opposition, plaintiff states that he has provided further responses to Special Interrogatories numbers 1, 3, and 20-24, leaving only numbers 25-28 and Request for Production of documents number 37 in dispute. While whether the supplemental responses resolve the underlying issues remains to be seen, for purposes of this motion the Court will consider only the remaining requests.

The requests are as follows:

SRog 25: Please state your starting salary with Freeman Mathis & Gary;

SRog 26: Please state your current salary with Freeman Mathis & Gary

SRog 27: If you have a billable hour requirement at Freeman Mathis & Gary, please provide that information for each year you have worked for that firm;

SROg No. 28: If there is a salary bonus at Freeman Mathis & Gary available to you, please state the details of the salary bonus for each year you have worked for that firm, including the amount and how you qualify for it.

RFP No. 37: A copy of your entire personnel file at Freeman Mathis & Gary.

Discussion:

In summary, the dispute is centered around requests seeking employment-related information from plaintiffs. As plaintiff states, "Plaintiff does not seek wage loss damages. He seeks general damages for the lasting, non-economic harms and diminished quality of life caused by the incident." Thus, plaintiff argues, the matters are not only irrelevant but implicate the constitutional right of privacy, meaning that relevance is not enough.

The District asserts that plaintiff's "claimed emotional distress and diminished professional functioning are directly tied to his ability to work and perform as an attorney. Plaintiff's salary and bonus information is therefore relevant to the severity of this claimed loss of enjoyment of life and to whether his alleged limitations are consistent with his income and professional status."

In the Court's view, to the extent plaintiff intends to argue that as a result of the accident, he now is unable to engage in the practice of law (at least to the same extent as he did in the past), and that this has caused him emotional suffering, discovery into the extent of his actual work for his firm is relevant. And the District is entitled to inquire into how his ability to work after the accident compared to before the accident. But the amount of money he is making compared to the past is not relevant.

Applying these principles to the Special Interrogatories at issue, the Court denies the motion as to

Numbers 25, 26 (salary), and 28 (bonus). The motion is granted as to Number 27 (billable hour requirement).

As to Request for Production of Documents Number 37, ordinarily, where a request is overbroad, the responding party still must produce as much of the material as is discoverable. In this instance, however, the request for the entire personnel file is so clearly overbroad that plaintiff was substantially justified in objecting to the entire request. Moreover, the District's position in this motion is that "Plaintiff's entire personnel file is highly relevant." It does not propose any narrowing. Given its breadth, the request would require production of large amounts of irrelevant and private information. The motion is denied as to Request for Production of Documents Number 37.

Sanctions:

Each side seeks sanctions against the other. Plaintiffs assert that the District failed to adequately meet and confer, that most of the issues were resolved by negotiation, and that the motion was unnecessary.

The District contends that Plaintiffs only supplemented their responses after the motion was filed. Rule of Court 3.1348(a) specifically addresses this situation, providing: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Failure to oppose or filing of a supplemental response "shall not be deemed an admission that the motion was proper or that sanctions should be awarded." (CRC 3.1348(b).)

Under the circumstances, starting with the requests and including the meet and confer process and the motion, the Court concludes that each side's position was substantially justified, and denies both requests for sanctions.

7. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**
FILED BY: SEQUOIA EQUITIES, INCORPORATED
TENTATIVE RULING:

Before the Court is a motion to consolidate related cases per Cal. Rules of Court, Rule 3.350(a)(1)(C) filed by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. For the reasons set forth, the motion is **denied, without prejudice**.

Background

This class action lawsuit was filed by Kiara Ross, Felicia Costa, and Mark Piepowski, on behalf of themselves and a putative class of tenants ("Class Plaintiffs"), against defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. ("Sequoia/Alder Defendants"), along with approximately 67 single purpose entity-apartment building owners. (Original Class Compl. ¶¶ 13, 15.) The entity-